

23STCV18015 23STCV18015

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Case Number: 23STCV18015 Hearing Date: August 5, 2026 Dept: 509

Sergio D. Medina v. General Motors LLC

MOTION TO TAX COSTS

MOVING PARTY: Plaintiff Sergio D. Medina

RESPONDING PARTY(S): None

STATEMENT OF MATERIAL FACTS AND/OR PROCEEDINGS:

Plaintiff Sergio D. Medina (Plaintiff) brings this action against Defendant General Motors LLC (Defendant). Plaintiff asserts he purchased a used 2017 Chevrolet Volt (Volt) that experienced defects that Defendant's authorized repair facilities failed to repair. Plaintiff asserts causes of action for: (1) breach of the implied warranty of merchantability (Civ. Code § 1791.1); (2) violation of the Magnuson-Moss Warranty Act; (3) breach of express warranty (Cal. Com. Code § 2313); (4) breach of implied warranty of merchantability (Cal. Com. Code § 2314); and (5) breach of implied warranty of fitness for a particular purpose (Cal. Com. Code § 2315).

On May 28, 2026, this Court granted Defendant's motion for summary judgment.

On June 22, 2026, Defendant filed a memorandum of costs.

On June 23, 2026, Judgment was entered in favor of Defendant.

On July 1, 2026, Plaintiff filed this instant motion to tax costs. No opposition was filed. [FN 1]

TENTATIVE RULING:

Plaintiff's Motion to Tax Costs is GRANTED IN PART.

A total of \$196.65 is ordered stricken or taxed from the cost memorandum. All other requested costs, in total \$1435.00, are allowed.

Defendant is ordered to give notice, unless waived.

DISCUSSION:

Motion to Tax Costs

Defendant seeks his costs of \$1,631.65 incurred in this action. (See 6/22/26 Memo of Costs.)

As an initial matter, this memorandum of costs was filed before the judgment was entered. However, "the premature filing of a memorandum of costs is treated as 'a mere irregularity at best' that does not constitute reversible error absent a showing of prejudice. [Citation] Rather, courts treat prematurely filed cost bills as being timely filed." (Haley v. Casa Del Rey Homeowners Assn. (2007) 153 Cal.App.4th 863, 880.) The Court may consider this memorandum of costs timely filed even though it was filed before the judgment was entered.

Further, Plaintiff argues "the two amounts actually listed on the form total \$1,565.50, which is \$66.15 less than the \$1,631.65 total claimed." (Mot. at p. 2:4-5.) The Court agrees that Defendant's memorandum of costs appears to be incorrectly added. To that extent, Plaintiff's motion to tax the \$66.15 not listed in the memorandum of costs is GRANTED.

As to the remaining requested costs, Code of Civil Procedure section 1033.5 sets forth the costs recoverable by the prevailing party. (Code Civ. Proc., § 1033.5.) "Allowable costs shall be reasonably necessary to the conduct of the litigation rather than merely convenient or beneficial to its preparation." (Code Civ. Proc., §1033.5(c)(2); Perko's Enterprises, Inc. v. RRNS Enterprises (1992) 4 Cal.App.4th 238, 244.) "Allowable costs shall be reasonable in amount." (Code Civ. Proc., §1033.5(c)(3).) The court may allow or deny costs not mentioned in Code of Civil Procedure section 1033.5. (Code Civ. Proc., §1033.5(c)(4).)

"If items on their face appear to be proper charges, the verified memorandum of costs is prima facie evidence of their propriety, and the burden is on the party seeking to tax costs to show they were not reasonable or necessary." (Jones v. Dumrichob (1998) 63 Cal.App.4th 1258, 1266; see Bach v. County of Butte (1989) 215 Cal.App.3d 294, 308 (citing Wilson v. Board of Retirement (1959) 176 Cal.App.2d 320, 323) "[A] properly verified memorandum of costs is considered prima facie evidence that the costs listed in the memorandum were necessarily incurred.>"). "If the items appearing in a cost bill appear to be proper charges, the burden is on the party seeking to tax costs to show that they were not reasonable or necessary. On the other hand, if the items are properly objected to, they are put in issue and the burden of proof is on the party claiming them as costs." (Ladas v. California State Auto. Assn. (1993) 19 Cal.App.4th 761, 774 (citing Melnyk v. Robledo (1976) 64 Cal.App.3d 618, 624; Oak Grove School Dist. v. City Title Ins. Co. (1963) 217 Cal.App.2d 678, 698-699); see also Adams v. Ford Motor Co. (2011) 199 Cal.App.4th 1475, 1486 (2011); 612 South LLC v. Laconic Limited Partnership (2010) 184 Cal.App.4th 1270, 1285.)

Here, Plaintiff has challenged both categories of costs.

First, "Line 15 seeks \$130.50 for "Other," but GM does not describe what those "Other" costs are." (Mot. at p. 4:1-2.) The Court agrees that by listing these costs as "Other" those costs do not appear to be proper charges on its face. Therefore, by objecting to this category of costs, they are now put in issue, and the burden of proof is now on Defendant. (Ladas v. California State Auto. Assn., supra, 19 Cal.App.4th at p. 774.) By failing to oppose, Defendant has not met its burden of proof demonstrating these costs are reasonable or necessary.

Accordingly, Plaintiff's motion to tax costs in the amount of \$130.50 is GRANTED.

Next, Plaintiff challenges "Line 1 because GM does not identify the specific filings or motions for which the \$1,435.00 was allegedly incurred, does not state the amount associated with each filing or motion, and does not provide invoices, receipts, register of actions entries, or other competent documentation supporting the lump-sum amount." (Mot. at p. 4:15-18.) However, "[t]here is no requirement that copies of bills, invoices, statements, or any other such documents be attached to the memorandum [of costs]. Only if the costs have been put in issue via a motion to tax costs must supporting documentation be submitted." (Jones v. Dumrichob (1998) 63 Cal.App.4th 1258, 1267 (citing Bach v. County of Butte (1989) 215 Cal.App.3d 294, 308.)) Indeed, only where an item both (a) appears improper on its face and (b) moving party has objected, the opposing party bears the burden of producing evidence to support that item. (Ladas, supra, 19 Cal.App.4th at p. 774; Oak Grove School Dist. of Santa Clara County, supra, 217 Cal.App.2d at p. 698.)

However, as Plaintiff highlights, "filing and motion fees may be allowable under Code of Civil Procedure section 1033.5(a)(1)." (Mot. at p. 4:19-20.) On its face, the recovery of filing and motion fees appear proper. "If the items appearing in a cost bill appear to be proper charges, the burden is on the party seeking to tax costs to show that they were not reasonable or necessary." (Ladas v. California State Auto. Assn., supra, 19 Cal.App.4th at p. 774.) Here, Plaintiff has not met that burden. Plaintiff argues solely that "[w]ithout itemization, Plaintiff and the Court cannot determine whether Line 1 includes only recoverable court filing and motion fees, or whether it also includes nonrecoverable, duplicative, administrative, rejected, or improperly categorized charges." (Mot. at p. 4:21-24.) However, as discussed above, a memorandum of costs is not required to be itemized. Plaintiff makes no argument that \$1,435 is otherwise unreasonable or unnecessary.

Accordingly, Plaintiff's Motion to Tax Costs as to Line 1 in the amount of \$1,435.00 is DENIED.

A total of \$196.65 is ordered stricken or taxed from the cost memorandum. All other requested costs totaling \$1435.00 are allowed.

IT IS SO ORDERED.

DATE: August 5, 2026 _____

Randolph M. Hammock

Judge of the Superior Court

FN 1- On July 1, 2026, Plaintiff served this motion on Defendant's counsel of record, Erskine Law Group, APC, via email.

Any party may submit on the tentative ruling by contacting the courtroom via email at by no later than 4:00 p.m. the day before the hearing. All interested parties must be copied on the email. It should be noted that if you submit on a tentative ruling the court will still conduct a hearing if any party appears. By submitting on the tentative you have, in essence, waived your right to be present at the hearing, and you should be aware that the court may not adopt the tentative, and may issue an order which modifies the tentative ruling in whole or in part.